

HOUSE BILL 1437

By Sexton

AN ACT to amend Chapter 519 of the Private Acts of 1953; as amended and rewritten by Chapter 55 of the Private Acts of 2014; and any other acts amendatory thereto, relative to the Charter for the City of Crossville.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article II, Section 1 by deleting the last paragraph and substituting:

The boundaries of the City of Crossville have been expanded by Ords. No. 396, 397, 453, 458, 463, 464, 465, 466, 469, 472, 480, 481, 490, 495, 496, 497, 524, 536, 546, 547, 558, 559, 560, 563, 564, 567, 568, 577, 579, 580, 588, 589, 597, 598, 599, 600, 601, 602, 603, 605, 609, 617, 618, 621, 622, 624, 625, 636, 637, 668, 704, 707, 770, 771, 772, 773, 797, 817, 826, 837, 842, 857, 870, 905, 906, 907, 926, 978, 1000, 1001, 1003, 1009, 1010, 1028, 1029, 1041, 1046, 1052, 1053, 1057, 1058, 1059, 1060, 1071, 1072, 1078, 1079, 1085, 1086, 1091, 1092, 1098, 1104, 1108, 1111, 1116, 1117, 1137, 1139, 1140, 1149, 1150, 1164, 1172, 1191, 1197, 1244, 1248, 1249, 1250, 1251, 1290, 1294, 1295, 1319, 1323, 1334, 1339, 1343, 1345, 1360, 1361, 1362, 1365, 1375, 1391, 1392, 1395, 1398, 1399, 1409, 1410, 1421, 1425, 1447, 1449, 1450, and 1451. Ord. No. 359 was an annexation ordinance but it was repealed by Ord. No. 369. Ord. No. 398 was also an annexation ordinance but it was judicially declared void. Additional annexations by resolution have expanded the corporate boundaries and shall be kept on file with the City Clerk's Office.

SECTION 2. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article IV, Section 3 by deleting the second paragraph, which reads:

In any election under this Act, all registered voters, otherwise legally qualified to vote in county and state elections held in Cumberland County, Tennessee, and who are bona fide residents of said City and who have been such for three (3) months preceding any election under this act, and all persons otherwise legally qualified to vote in county and state elections held in Cumberland County, Tennessee, owning a taxable freehold assessed on the city tax books at a value of five thousand dollars (\$5,000) or more, such ownership to be evidenced by a registered conveyance placed of record at least three (3) months before the election, or a certificate from the tax assessor that property is so assessed, shall be entitled to vote.

and substituting the following:

In any election under this Act, all registered voters, otherwise legally qualified to vote in county and state elections held in Cumberland County, Tennessee, and who are bona fide residents of said City and who have been such for three (3) months preceding any election under this act, and all persons otherwise legally qualified to vote in county and state elections held in Cumberland County, Tennessee, owning a taxable freehold real estate asset, such ownership to be evidenced by a registered conveyance placed of record at least three (3) months before the election, or a certificate from the tax assessor that property is so assessed, shall be entitled to vote.

SECTION 3. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article V, by deleting Section 4 and substituting the following:

Section 4. Compensation of mayor and council members.

The salary of the mayor of the City of Crossville shall be fifteen percent (15%) of the Cumberland County Mayor's salary. The salary for each council member of the City of Crossville shall be five percent (5%) of the mayor's salary. Any

increase in compensation for the members of this legislative body does not take effect until the beginning of the term following the next election of the mayor and of the council members.

SECTION 4. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article V, by deleting Section 7 and substituting the following:

Section 7. Time and place of council meetings.

Be it further enacted, that the City Council shall, by ordinance, fix the time and place at which the regular meetings of said council shall be held, and until otherwise provided by ordinance, the regular meetings of the council shall be held at 6:00 P.M., on the second Tuesday of each month.

SECTION 5. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article V, by deleting Section 8 and substituting the following:

Section 8. Special meetings; limitations on business discussed; public announcement.

Be it further enacted, that whenever, in the opinion of the mayor, or of any two (2) councilmembers, the welfare of the city demands it, the mayor or any two (2) councilmembers may call special meetings upon not less than forty-eight (48) hours written notice to each councilmember, served personally, left at his usual place of residence, or noticed by electronic means. Each call for a special meeting shall set forth the character of the business to be discussed at such meeting and no other business shall be considered at such meeting. The agenda shall be posted on the city's website.

SECTION 6. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article VII, by deleting Section 1 and substituting the following:

Section 1. Powers granted and duties imposed by the charter.

Be it further enacted, that the Mayor shall preside at all meetings of the City Council and perform such other duties consistent with his office as may be imposed by it, and the Mayor shall have a seat, a voice, and a vote. The Mayor shall sign the journal of the council and all ordinances on their final passage, execute all deeds, bonds, and contracts made in the name of the city, and he may introduce ordinances in the City Council. Notwithstanding the foregoing, contracts may be signed by the Mayor or City Manager as set by ordinance.

SECTION 7. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article IX, by deleting Section 1 and substituting the following:

Section 1. City court and judge.

Be it further enacted, that there shall be a city court presided over by a city judge. The City Council shall elect or appoint a city judge by a majority vote of its entire membership, for a period of two (2) years. He shall have such qualifications and receive such compensation as the council may provide by ordinance or resolution. He shall be removable during his term of office under the provisions of the general ouster law of Tennessee, and for violation of said law. No member of the City Council shall at any time be chosen as city judge.

SECTION 8. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended by deleting Article X and substituting the following:

ARTICLE X: FINANCE AND TAXATION

Section 1. Finance Director to make assessment and revenue report to the City Manager; Council to levy taxes.

Be it further enacted, that it shall be the duty of the Finance Director, in each year, as soon as the assessment roll for the city is complete, to submit to the City

Manager a certified statement of the total amount of the valuation or assessment of the taxable property for the year within the city limits, including the assessment of all railroad, telephone, telegraph, and other public utility properties, together with a certified statement of the revenue derived by the city from privilege taxes, and all other source of revenue for the preceding fiscal year. Upon the presentation of such statements by the city manager, the City Council shall proceed by ordinance to make the proper levy to meet the expense of the city for the current fiscal year.

Section 2. Personal liability for corporations, LLC's, Partnerships, Limited Partnerships, and Other Entities.

Pursuant to Tennessee Code Annotated, § 67-5-2101(c), each person owning an interest in a corporate entity or similar organization, including, but not limited to, limited liability companies, limited partnerships, and other entities for which the owners of the entity are accorded limited liability for debts of the entity and that is, or is stated in the records of the office of secretary of state to be, an inactive, dissolved, revoked, or otherwise terminated entity, is jointly and severally liable with the entity, each other, and such other persons as may be liable, for all unpaid property taxes levied against parcels assessed to the entity, and such interest, attorney fees, and other court costs as may accrue on the same.

Section 3. City manager to cause tax levy to be extended upon the tax book.

Be it further enacted, that it shall be the duty of the city manager, immediately after the levy of taxes by the City Council, to cause the levy to be extended upon the tax book prepared by the Tax Assessor in the same manner that extensions are made upon the tax books in the hands of the County Trustee.

Section 4. Date taxes due; issuance of distress warrants.

Be it further enacted, that it shall be the duty of the city manager, immediately after the levy of taxes by the City Council, to cause the levy to be extended upon the tax book prepared by the Tax Assessor in the same manner that extensions are made upon the tax books in the hands of the County Trustee.

Section 5. Liens assessed by city for unpaid taxes.

Be it further enacted, that all municipal taxes on real estate in the city, and all penalties and costs securing thereon are hereby declared to be a lien on said realty from and after the tenth day of January of the year for which same are assessed, superior to all other liens except the liens of the United States, State of Tennessee, and Cumberland County, for taxes legally assessed thereon, with which it shall be a lien of equal dignity. No assessment shall be invalid because the size and dimensions of any tract, lot or parcel of land shall not have been precisely named or the amount of the valuation or tax not correctly given, nor because the property has been assessed in the name of a person who did not own the same, nor because the same was assessed to unknown owners, nor on account of any objection or informality merely technical, but all such assessments shall be good and valid. The City Council shall have power to correct any errors in the tax assessments upon a certificate filed by the Assessor of Assessing Body.

Section 6. Penalties and interest on unpaid taxes.

Be it further enacted, that on the first day of January of the year following that for which the taxes are assessed, or other date provided by ordinance, a penalty of one and one-half percent (1.5%) per month upon all taxes, other than privilege and merchants' ad valorem taxes, remaining unpaid shall be imposed and collected by the City of Crossville and paid into the City Treasury.

Section 7. Tax provisions that may be changed by ordinance.

Be it further enacted, that the City Council may, by ordinance passed by majority vote, change the due date and delinquent date of all taxes, and may provide for the semiannual payment of taxes and a discount for the prompt payment thereof.

Section 8. Finance Director to certify list of real estate with unpaid taxes; sale of real estate.

Be it further enacted, that the Finance Director shall, under the provisions of the State law for the collection of delinquent taxes, certify to the city attorney or, if the city attorney is not appointed, the City Council, a list of all real estate upon which municipal taxes remain due and unpaid, or which is liable for sale for other taxes, and the same shall be sold in like manner and upon the same terms and conditions as real estate is sold for delinquent state and county taxes.

Section 9. Filing of suit for collection of taxes.

Be it further enacted, that the City Council shall have the power, and is hereby given authority to file bills in the chancery court in the name of the City for the collections of assessments and levies made for payment for improvements or service in the City, such as paving, sidewalks, curbing, guttering, sewers, and other improvements, or services for which assessments may be made under the Charter, or by any other legislative acts, and the cost which is made a charge on property, the suits commenced by such bills to be conducted as other suits in chancery for the enforcement of like liens and under the rules of law and practice provided for the same; provided, that the bills shall not be objectionable because the owner of different parcels or lots of land are made parties thereto, it being the intention that all persons in the same assessment and levy for improving any portion of the City as aforesaid, and on whose property the assessment or levy is a lien, shall be made parties defendant to one (1) bill.

SECTION 9. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in

Article XI, Section 7 by deleting the language "two percent (2%)" and substituting the language "three percent (3%)".

SECTION 10. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article XX, by deleting Section 1 and substituting the following:

Section 1. Jurisdiction of city court.

Be it further enacted, that there be, and hereby is, established and constituted for said City of Crossville a city court, which shall be presided over by the city judge, with exclusive jurisdiction to try all offenses for the violation of the city ordinances and bylaws.

SECTION 11. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article XX, by deleting Section 2 and substituting the following:

Section 2. Powers of the city court.

Be it further enacted, that the said court shall have power and authority to impose fines, costs, and forfeitures; to punish by fine or imprisonment, or both, for violation of city ordinances; to enforce and preserve order in court; and to enforce the collection of all such fines, costs, or forfeiture imposed. The city judge shall have the exclusive right to remit or suspend, with or without condition, fines and costs imposed for violation of any ordinance or charter provision.

SECTION 12. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article XX, by deleting Section 3 and substituting the following:

Section 3. Qualifications of and exclusive powers of the city judge.

Be it further enacted, that the city judge staff be an attorney duly licensed to practice law in the state of Tennessee and that no person, officer, or employee,

whomsoever other than the city judge shall have the right or power or be permitted to remit in whole or in part any fine or costs imposed by the city judge.

SECTION 13. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article XX, by deleting Section 6 and substituting the following:

Section 6. Fines.

Be it further enacted, that all fines imposed by the city court for violations of city ordinances shall belong to and be paid into the treasury of the city.

SECTION 14. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in Article XX, by deleting Section 9 and substituting the following:

Section 9. Municipal judge or general sessions judge to preside in absence of city judge; vacancy.

Be it further enacted, that in the event of the absence, incompetency, or other disability of the city judge, the municipal judge or general sessions judge is hereby authorized and empowered to act in his stead, and while so acting he shall be invested with the same powers and shall perform the same duties hereby bestowed and imposed upon the presiding officer of the court. In the event the office shall become vacant for any cause, the City Council shall elect some suitable person to fill out the unexpired term.

SECTION 15. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended by adding the following new section at the end of Article XX:

Section 13. Administrative hearing officer duties and authority.

Be it further enacted, that the City of Crossville allow for administrative hearings and administrative hearing officers. The officers shall act within the scope of work granted by Tennessee Code Annotated, Title 6, Chapter 54, Part 10.

SECTION 16. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended in the first and second paragraphs of Article XXI, Section 1 by deleting the language "five thousand dollars (\$5,000)" and substituting the language "the amount set by the purchasing and bidding ordinance".

SECTION 17. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended by deleting Article XXIII and substituting the following:

[Deleted by 2025 Charter Amendment]

SECTION 18. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended by deleting Article XXIV and substituting the following:

[Deleted by 2025 Charter Amendment]

SECTION 19. Chapter 519 of the Private Acts of 1953, as amended and rewritten by Chapter 55 of the Private Acts of 2014, and any other acts amendatory thereto, is amended by deleting Article XXV and substituting the following:

[Deleted by 2025 Charter Amendment]

SECTION 20. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the City of Crossville. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 21. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 20.